

COMPLETE LEARNING SESSION

Administrative Tribunals - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Administrative Tribunals - Complete Uncompressed Learning Session

Complete independent learning session + verified PYQ routing + solved practice workbook + final consolidated register notes

Legal/current control date: 25 August 2026 (Asia/Kolkata)

Tag key: [FACT] = named constitutional, statutory, official, judicial or audited local support; [ANALYSIS] = reasoned examination; [CURRENT] = checked for the control date; [LIMIT] = qualification. **Answer-writing discipline:** claim -> named evidence -> analysis -> qualification.

- [CURRENT] Status is controlled to **25 August 2026, Asia/Kolkata**.
- [CURRENT] **Live official refresh, 25 August 2026:** Articles 323A/323B, the Administrative Tribunals Act 1985, CAT material and the Supreme Court's tribunal-independence line through the judgment reported as 2025 INSC 1330 were rechecked on 25 August 2026. Appointment, tenure and service-condition statements carry an exact dated caveat because the common tribunal framework remains litigation- and implementation-sensitive.

How to Use This Package

[FACT] The complete Basic/Core owner is taught first in source order. Cross-topic Markdown, local OCR books and verified PYQ ledgers supplement it.

[FACT] Advanced-owner material appears only after the Core and practice sections under the required optional-depth label.

[LIMIT] Tribunals supplement specialist adjudication; they do not replace High Courts or the Supreme Court. L. Chandra Kumar preserves Articles 226/227 review. CAT, SATs, other Article 323B tribunals, commissions, courts and Lok Adalats must not be collapsed into one institutional category.

Local Owner Gateway

Subject: Polity | **Tier:** Basic | **GS Paper:** GS-II **Grounded in:** Articles 323-A and 323-B; Administrative Tribunals Act, 1985; *L. Chandra Kumar v. Union of India* (1997); Tribunal Reforms Act, 2021; *Madras Bar Association v. Union of India*, 2025 INSC 1330; Supreme Court order dated 9 March 2026. [FACT] = official/case-grounded | [LIMIT] = analysis | [CURRENT] = current/PYQ anchor. *Advanced: optional deeper detail in advanced/46_Administrative-Tribunals.md - not required for any mark.*

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - SNAPSHOT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Snapshot denotes the constitutional rules and institutional links organised around Feature Article 323-A Article 323-B.

Technical definition: Its principal consequence is that feature Article 323-A Article 323-B.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 323A confines service tribunals to parliamentary creation, while Article 323B permits Parliament or State legislatures to establish tribunals for specified subjects within competence.

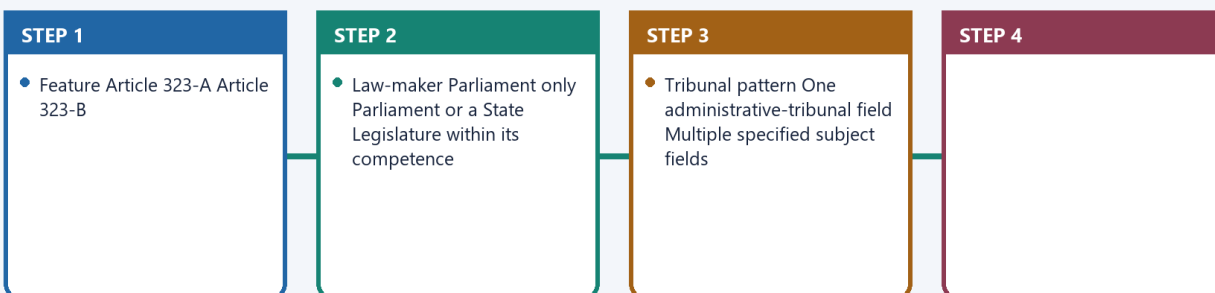
MUST-WRITE KEYWORDS

- Snapshot
- Subject
- Recruitment and service conditions of public servants
- Law-maker
- Parliament only
- Parliament or a State Legislature within its competence

How to use them: Frame the answer through Snapshot; define Subject, connect Recruitment and service conditions of public servants with Law-maker to explain the mechanism, and use Parliament only for the decisive comparison or qualification.

Snapshot denotes the constitutional rules and institutional links organised around Feature Article 323-A Article 323-B. Snapshot operates through Law-maker Parliament only Parliament or a State Legislature within its competence, connected with Tribunal pattern One administrative-tribunal field Multiple specified subject fields. The operative mechanism matters because feature Article 323-A Article 323-B. Its principal consequence is that feature Article 323-A Article 323-B. The decisive contrast is between Feature Article 323-A Article 323-B and Feature Article 323-A

SNAPSHOT



Topic-specific visual map: Snapshot.

Feature	Article 323-A	Article 323-B
Subject	Recruitment and service conditions of public servants	Specified fields such as tax, foreign exchange, labour, land reform and elections
Law-maker	Parliament only	Parliament or a State Legislature within its competence
Tribunal pattern	One administrative-tribunal field	Multiple specified subject fields

CLOSING RECALL FLOW - SNAPSHOT

SUBTOPIC CLOSURE FLOW | Snapshot

1. KEY TERMS / DEFINITIONS

Snapshot · Subject · Recruitment and service conditions of public servants · Law-maker · Parliament only · Parliament or a State Legislature within its competence

2. MECHANISM / ARGUMENT

Its principal consequence is that feature Article 323-A Article 323-B.

3. CONSEQUENCE / CONTRAST

The decisive contrast is between Feature Article 323-A Article 323-B and Feature Article 323-A Article 323-B.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the exam-safe limitation is that feature Article 323-A Article 323-B.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 323A confines service tribunals to parliamentary creation, while Article 323B permits Parliament or State legislatures to establish tribunals for specified subjects within competence.

SESSION 2 - CORE ARCHITECTURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Core architecture denotes the constitutional rules and institutional links organised around SPECIALISED, FASTER FORUM.

Technical definition: The decisive contrast is between by a High Court Division Bench and under Articles 226/227.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Administrative Tribunals Act, 1985 provides for the Central Administrative Tribunal (CAT) and enables State/Joint Administrative Tribunals.

MUST-WRITE KEYWORDS

- Core architecture

- **SPECIALISED**
- **FASTER FORUM**
- **Its principal consequence**
- **Its**
- **The decisive contrast**

How to use them: Frame the answer through Core architecture; define SPECIALISED, connect FASTER FORUM with Its principal consequence to explain the mechanism, and use Its for the decisive comparison or qualification.

Core architecture denotes the constitutional rules and institutional links organised around SPECIALISED, FASTER FORUM. Core architecture operates through Administrative tribunal, connected with expertise + flexible procedure. The operative mechanism matters because I. Chandra Kumar safeguard. Its principal consequence is that tribunal decisions remain reviewable. The decisive contrast is between by a High Court Division Bench and under Articles 226/227. The exam-safe limitation is that [FACT] The Administrative Tribunals Act, 1985 provides for the Central Administrative.

CORE ARCHITECTURE

AXIS 1

- SPECIALISED, FASTER FORUM
- Administrative tribunal
- expertise + flexible procedure

AXIS 2

- L. Chandra Kumar safeguard
- tribunal decisions remain reviewable
- by a High Court Division Bench

AXIS 3

- under Articles 226/227
- [FACT] The Administrative Tribunals Act, 1985 provides for the Central Administrative

Topic-specific visual map: Core architecture.

SPECIALISED, FASTER FORUM

|
v

Administrative tribunal
expertise + flexible procedure

|
v

L. Chandra Kumar safeguard
tribunal decisions remain reviewable
by a High Court Division Bench
under Articles 226/227

- [FACT] The Administrative Tribunals Act, 1985 provides for the Central Administrative Tribunal (CAT) and enables State/Joint Administrative Tribunals.

- [FACT] CAT deals principally with recruitment and service matters of covered Union public servants; its jurisdiction is statutory and has exclusions.

- [FACT] Tribunals are supplemental to, not substitutes for, constitutional courts.

- [FACT] Judicial review under Articles 32 and 226/227 is part of the basic structure.

CLOSING RECALL FLOW - CORE ARCHITECTURE

SUBTOPIC CLOSURE FLOW | Core architecture

1. KEY TERMS / DEFINITIONS Core architecture · SPECIALISED · FASTER FORUM · Its principal consequence · Its · The decisive contrast	2. MECHANISM / ARGUMENT The decisive contrast is between by a High Court Division Bench and under Articles 226/227.	3. CONSEQUENCE / CONTRAST Its principal consequence is that tribunal decisions remain reviewable.	4. UPSC TRAP / ANSWER-USE Tribunals are supplemental to, not substitutes for, constitutional courts.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Administrative Tribunals Act, 1985 provides for the Central Administrative Tribunal (CAT) and enables State/Joint Administrative Tribunals.			

SESSION 3 - TRIBUNAL REFORMS ACT, 2021

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Tribunal Reforms Act, 2021 denotes the constitutional rules and institutional links organised around The 2021 rationalisation abolished specified appellate bodies and transferred their.

Technical definition: The operative mechanism matters because service conditions for members of covered tribunals.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Tribunal Reforms Act 2021 created a common framework for covered tribunals, but later judgments invalidated important appointment and tenure provisions.

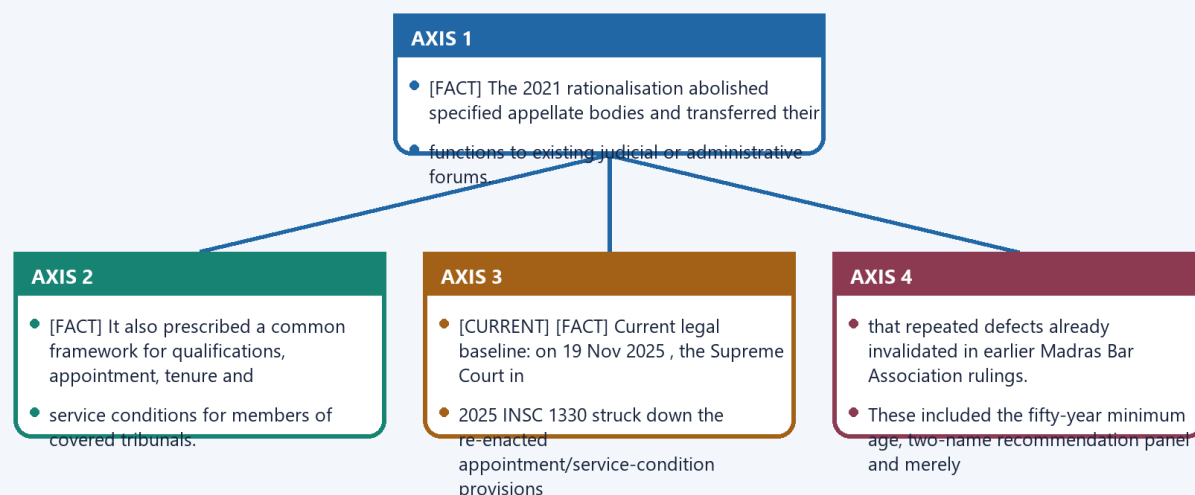
MUST-WRITE KEYWORDS

- Tribunal Reforms Act
- Current legal baseline
- 19 Nov 2025
- 2025 INSC 1330
- 9 Mar 2026
- 8 Sep 2026

How to use them: Frame the answer through Tribunal Reforms Act; define Current legal baseline, connect 19 Nov 2025 with 2025 INSC 1330 to explain the mechanism, and use 9 Mar 2026 for the decisive comparison or qualification.

Tribunal Reforms Act, 2021 denotes the constitutional rules and institutional links organised around [FACT] The 2021 rationalisation abolished specified appellate bodies and transferred their. Tribunal Reforms Act, 2021 operates through functions to existing judicial or administrative forums, connected with [FACT] It also prescribed a common framework for qualifications, appointment, tenure and. The operative mechanism matters because service conditions for members of covered tribunals. Its principal consequence is that [CURRENT] [FACT] Current legal baseline: on 19 Nov 2025 , the Supreme Court in. The decisive contrast is between 2025 INSC 1330 struck down the re-enacted appointment/service-condition provisions and that repeated defects already invalidated in earlier Madras Bar Association rulings. The exam-safe limitation is that these included the fifty-year minimum age, two-name recommendation panel and merely.

TRIBUNAL REFORMS ACT, 2021



Topic-specific visual map: Tribunal Reforms Act, 2021.

- [FACT] The 2021 rationalisation abolished specified appellate bodies and transferred their functions to existing judicial or administrative forums.
- [FACT] It also prescribed a common framework for qualifications, appointment, tenure and service conditions for members of covered tribunals.
- [CURRENT] [FACT] **Current legal baseline: on 19 Nov 2025**, the Supreme Court in **2025 INSC 1330** struck down the re-enacted appointment/service-condition provisions that repeated defects already invalidated in earlier *Madras Bar Association* rulings. These included the fifty-year minimum age, two-name recommendation panel and merely preferable appointment timeline, four-year tenure, and impugned allowance framework. The Court made *MBA (IV)* and *MBA (V)* the controlling framework and directed creation of a National Tribunals Commission within four months.
- [CURRENT] [FACT] A **9 Mar 2026** interim order separately permitted temporary extensions for specified serving tribunal incumbents until **8 Sep 2026** or the applicable maximum age, whichever was earlier, to prevent tribunals becoming defunct. It was a continuity arrangement, not a reopening of the November 2025 constitutional ruling.
- [LIMIT] Rationalisation can reduce institutional duplication, but transferring specialised work to already burdened courts may weaken the promised gains in speed and expertise.
- [LIMIT] Executive influence over appointments, short tenure, vacancies and infrastructure remain the central independence/capacity concerns.

CLOSING RECALL FLOW - TRIBUNAL REFORMS ACT, 2021

SUBTOPIC CLOSURE FLOW | Tribunal Reforms Act, 2021

1. KEY TERMS / DEFINITIONS

Tribunal Reforms Act · Current legal baseline · 19 Nov 2025 · 2025 INSC 1330 · 9 Mar 2026 · 8 Sep 2026

2. MECHANISM / ARGUMENT

The operative mechanism matters because service conditions for members of covered tribunals.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that [CURRENT] Current legal baseline: on 19 Nov 2025, the Supreme Court in.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the decisive contrast is between 2025 INSC 1330 struck down the re-enacted appointment/service-condition provisions...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Tribunal Reforms Act 2021 created a common framework for covered tribunals, but later judgments invalidated important appointment and tenure provisions.

SESSION 4 - VERIFIED PYQ APPLICATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Verified PYQ application denotes the constitutional rules and institutional links organised around 2025 GS-II Q2 (10 marks, 150 words): “Comment on the need of administrative.

Technical definition: The exam-safe limitation is that 2025 GS-II Q2 (10 marks, 150 words): “Comment on the need of administrative. tribunals as compared to the court system.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The 2021 tribunal rationalisation promised consolidation but risked High Court burdens, vacancies and executive control unless independent appointments and capacity followed.

MUST-WRITE KEYWORDS

- Verified PYQ application
- route
- Verified PYQ
- GS-II
- Comment
- 2025 GS-II Q2 (10 marks, 150 words)

How to use them: Frame the answer through Verified PYQ application; define route, connect Verified PYQ with GS-II to explain the mechanism, and use Comment for the decisive comparison or qualification.

Verified PYQ application denotes the constitutional rules and institutional links organised around [FACT] 2025 GS-II Q2 (10 marks, 150 words): “Comment on the need of administrative. Verified PYQ application operates through tribunals as compared to the court system. Assess the impact of the recent tribunal, connected with reforms through rationalization of tribunals made in 2021.”. The operative mechanism matters because answer route: need (expertise, speed, flexible procedure) - safeguards. Its principal consequence is that (L. Chandra Kumar , independence) - 2021 gains (consolidation) - risks. The decisive contrast is between (court burden, vacancies, executive control) - independent appointments and capacity and [FACT] 2025 GS-II Q2 (10 marks, 150 words): “Comment on the need of administrative. The exam-safe limitation is that [FACT] 2025 GS-II Q2 (10 marks, 150 words): “Comment on the need of administrative.

- [FACT] 2025 GS-II Q2 (10 marks, 150 words): “Comment on the need of administrative

tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021.”

- **Answer route:** need (expertise, speed, flexible procedure) -> safeguards

(L. Chandra Kumar, independence) -> 2021 gains (consolidation) -> risks (court burden, vacancies, executive control) -> independent appointments and capacity.

CLOSING RECALL FLOW - VERIFIED PYQ APPLICATION

SUBTOPIC CLOSURE FLOW | Verified PYQ application

1. KEY TERMS / DEFINITIONS

Verified PYQ application · route · Verified PYQ · GS-II · Comment · 2025 GS-II Q2 (10 marks, 150 words)

2. MECHANISM / ARGUMENT

The decisive contrast is between (court burden, vacancies, executive control) - independent appointments and capacity and 2025 GS-II Q2 (10 marks, 150 words): “Comment on the need of administrative.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that (L.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the exam-safe limitation is that 2025 GS-II Q2 (10 marks, 150 words).

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 2021 tribunal rationalisation promised consolidation but risked High Court burdens, vacancies and executive control unless independent appointments and capacity followed.

SESSION 5 - TRAPS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Traps denotes the constitutional rules and institutional links organised around Wrong: Tribunal decisions are immune from High Court review. - They are reviewable under.

Technical definition: Technically, Traps is analysed by relating Tribunal to High Court, then testing the relationship through They and Chandra Kumar.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tribunal tenure, age, vacancy and pecuniary limits remain amendment- and judgment-sensitive, making undated numerical claims unreliable.

MUST-WRITE KEYWORDS

- Traps
- Tribunal
- High Court
- They
- Chandra Kumar
- Articles

How to use them: Frame the answer through Traps; define Tribunal, connect High Court with They to explain the mechanism, and use Chandra Kumar for the decisive comparison or qualification.

Traps denotes the constitutional rules and institutional links organised around Wrong: Tribunal decisions are immune from High Court review. - They are reviewable under. Traps operates through Articles 226/227 after L. Chandra Kumar, connected with Wrong: Articles 323-A and 323-B are identical. - They differ in subject, law-maker and scope. The operative mechanism matters because wrong: Rationalisation automatically reduces pendency. - Forum transfer can merely shift. Its principal consequence is that pendency unless judges, benches and infrastructure follow. The decisive contrast is between Wrong: The March 2026 extension restored the invalidated four-year-tenure rule. - It only and protected specified serving incumbents temporarily; the November 2025 constitutional. The exam-safe limitation is that ruling and the MBA (IV)/(V) controlling standards remained the legal baseline.

TRAPS

AXIS 1

- Wrong: Tribunal decisions are immune from High Court review. - They are reviewable under
- Articles 226/227 after L. Chandra Kumar .

AXIS 2

- Wrong: Articles 323-A and 323-B are identical. - They differ in subject, law-maker and scope.
- Wrong: Rationalisation automatically reduces pendency. - Forum transfer can merely shift

AXIS 3

- pendency unless judges, benches and infrastructure follow.
- Wrong: The March 2026 extension restored the invalidated four-year-tenure rule. - It only

AXIS 4

- protected specified serving incumbents temporarily; the November 2025 constitutional
- ruling and the MBA (IV)/(V) controlling standards remained the legal baseline.

Topic-specific visual map: Traps.

- Wrong: Tribunal decisions are immune from High Court review. -> They are reviewable under Articles 226/227 after L. Chandra Kumar.

- Wrong: Articles 323-A and 323-B are identical. -> They differ in subject, law-maker and scope.
- Wrong: Rationalisation automatically reduces pendency. -> Forum transfer can merely shift pendency unless judges, benches and infrastructure follow.
- Wrong: The March 2026 extension restored the invalidated four-year-tenure rule. -> It only protected specified serving incumbents temporarily; the November 2025 constitutional ruling and the *MBA (IV)/(V)* controlling standards remained the legal baseline.

See also: For the complete tribunal-versus-regulator taxonomy, natural justice and cross-sector appellate map, use *Statutory-Regulatory-and-Quasi-Judicial-Bodies.md*.

CLOSING RECALL FLOW - TRAPS

SUBTOPIC CLOSURE FLOW Traps			
1. KEY TERMS / DEFINITIONS Traps · Tribunal · High Court · They · Chandra Kumar · Articles	2. MECHANISM / ARGUMENT The operative mechanism matters because wrong: Rationalisation automatically reduces pendency. - Forum transfer can merely shift.	3. CONSEQUENCE / CONTRAST Its principal consequence is that pendency unless judges, benches and infrastructure follow.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: s denotes the constitutional rules and institutional links organised around Wrong.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal tenure, age, vacancy and pecuniary limits remain amendment- and judgment-sensitive, making undated numerical claims unreliable.			

06. 6. Answer architecture (10/15/20-mark support)

6. Answer architecture (10/15/20-mark support) denotes the constitutional rules and institutional links organised around Constitutional rule.
6. Answer architecture (10/15/20-mark support) operates through Operating mechanism, connected with Exam distinction.

The operative mechanism matters because constitutional rule. Its principal consequence is that constitutional rule. The decisive contrast is between Constitutional rule and Constitutional rule. The exam-safe limitation is that constitutional rule.

Purpose: make this Core file independently answer directive-sensitive GS-II questions on tribunals versus ordinary courts, CAT's adjudicatory independence, the 2021 rationalisation, and Lok Adalats versus arbitration - without opening Advanced. Tenure, age, vacancy and pecuniary-limit numbers change with each amendment and judgment; treat every such figure as [CURRENT] and re-verify.

SESSION 6 - DEMAND AND DIRECTIVE MAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.1 Demand and directive map denotes the constitutional rules and institutional links organised around Demand family Directive signals Answer spine.

Technical definition: Its principal consequence is that demand family Directive signals Answer spine.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tribunal analysis must separate specialised first-instance adjudication from constitutional supervision, testing efficiency gains against independence, access and judicial-review safeguards.

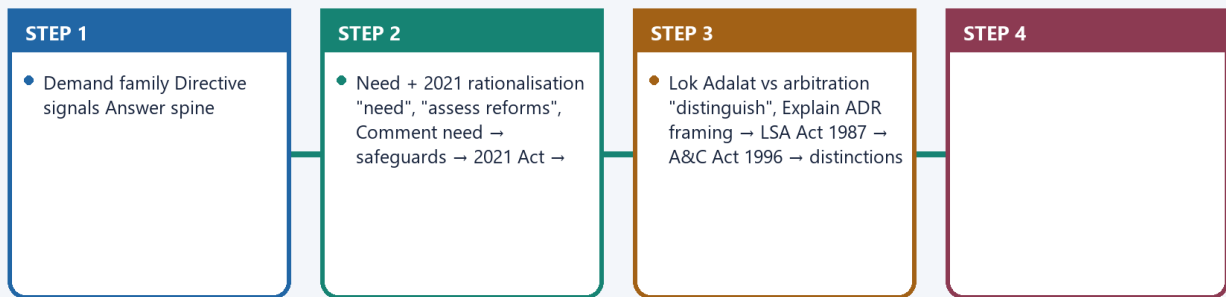
MUST-WRITE KEYWORDS

- Demand
- directive map
- Tribunals vs ordinary courts
- "curtail jurisdiction", How far, Discuss
- CAT's adjudicatory independence
- "independent judicial authority", Explain

How to use them: Frame the answer through Demand; define directive map, connect Tribunals vs ordinary courts with "curtail jurisdiction", How far, Discuss to explain the mechanism, and use CAT's adjudicatory independence for the decisive comparison or qualification.

6.1 Demand and directive map denotes the constitutional rules and institutional links organised around Demand family Directive signals Answer spine. 6.1 Demand and directive map operates through Need + 2021 rationalisation "need", "assess reforms", Comment need -> safeguards -> 2021 Act -> gains vs displacement -> verdict, connected with Lok Adalat vs arbitration "distinguish", Explain ADR framing -> LSA Act 1987 -> A&C Act 1996 -> distinctions -> verdict. The operative mechanism matters because demand family Directive signals Answer spine. Its principal consequence is that demand family Directive signals Answer spine. The decisive contrast is between Demand family Directive signals Answer spine and Demand family Directive signals Answer spine. The exam-safe limitation is that demand family Directive signals Answer spine.

6.1 DEMAND AND DIRECTIVE MAP



Topic-specific visual map: 6.1 Demand and directive map.

Demand family	Directive signals	Answer spine
Tribunals vs ordinary courts	"curtail jurisdiction", How far, Discuss	supplement-not-supplant -> 323A/B exclusion -> <i>L. Chandra Kumar</i> -> NTT/R. <i>Gandhi</i> -> verdict
CAT's adjudicatory independence	"independent judicial authority", Explain	AT Act 1985 -> independence markers -> executive-influence limit -> HC review -> verdict
Need + 2021 rationalisation	"need", "assess reforms", Comment	need -> safeguards -> 2021 Act -> gains vs displacement -> verdict
Lok Adalat vs arbitration	"distinguish", Explain	ADR framing -> LSA Act 1987 -> A&C Act 1996 -> distinctions -> verdict
Independence/accountability of tribunals	"appointments", "tenure", Critically examine	MBA line -> Finance Act 2017/ <i>Rojer Mathew</i> -> 2021 Act -> NTC -> verdict

CLOSING RECALL FLOW - DEMAND AND DIRECTIVE MAP

SUBTOPIC CLOSURE FLOW | Demand and directive map

1. KEY TERMS / DEFINITIONS Demand · directive map · Tribunals vs ordinary courts · "curtail jurisdiction", How far, Discuss · CAT's adjudicatory independence · "independent judicial authority", Explain	2. MECHANISM / ARGUMENT 6.1 Demand and directive map operates through Need + 2021 rationalisation "need", "assess reforms", Comment need -> safeguards -> 2021 Act -> gains vs displacement -> verdict, connected with Lok Adalat vs arbitration "distinguish", Explain ADR framing -> LSA Act 1987 -> A&C Act 1996 -> distinctions -> verdict.	3. CONSEQUENCE / CONTRAST Its principal consequence is that demand family Directive signals Answer spine.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between Demand family Directive signals Answer spine and Demand family...
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal analysis must separate specialised first-instance adjudication from constitutional supervision, testing efficiency gains against independence, access and judicial-review safeguards.			

SESSION 7 - QUALIFIED THESIS OPTIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.2 Qualified thesis options denotes the constitutional rules and institutional links organised around Constitutional rule.

Technical definition: Technically, Qualified thesis options is analysed by relating Qualified to Constitutional, then testing the relationship through Its principal consequence and Its.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The promise of tribunals - expertise, speed and access - is delivered only when their independence is secured; the recurring constitutional litigation since 2010 shows that appointment and tenure design, not jurisdiction, is the real battleground.

MUST-WRITE KEYWORDS

- Qualified thesis options
- Qualified
- Constitutional
- Its principal consequence
- Its
- 6.2 Qualified thesis options

How to use them: Frame the answer through Qualified thesis options; define Qualified, connect Constitutional with Its principal consequence to explain the mechanism, and use Its for the decisive comparison or qualification.

6.2 Qualified thesis options denotes the constitutional rules and institutional links organised around Constitutional rule. 6.2 Qualified thesis options operates through Operating mechanism, connected with Exam distinction. The operative mechanism matters because constitutional rule. Its principal consequence is that constitutional rule. The decisive contrast is between Constitutional rule and Constitutional rule. The exam-safe limitation is that constitutional rule.

- *Tribunals are a functional supplement to the courts, not a substitute for them: they may take the first bite of a dispute, but the High Court's supervisory jurisdiction is a basic-structure floor they cannot displace.*
- *The promise of tribunals - expertise, speed and access - is delivered only when their independence is secured; the recurring constitutional litigation since 2010 shows that appointment and tenure design, not jurisdiction, is the real battleground.*
- *Lok Adalats and arbitration answer two different justice deficits - one of access for the poor, one of autonomy for commerce - so they are complementary limbs of an alternative-dispute-resolution architecture, not rivals.*

CLOSING RECALL FLOW - QUALIFIED THESIS OPTIONS

SUBTOPIC CLOSURE FLOW | Qualified thesis options

1. KEY TERMS / DEFINITIONS Qualified thesis options · Qualified · Constitutional · Its principal consequence · Its · 6.2 Qualified thesis options	2. MECHANISM / ARGUMENT Its principal consequence is that constitutional rule.	3. CONSEQUENCE / CONTRAST The decisive contrast is between Constitutional rule and Constitutional rule.	4. UPSC TRAP / ANSWER-USE The promise of tribunals - expertise, speed and access - is delivered only when their independence is secured; the recurring constitutional litigation since 2010 shows that appointment and tenure design, not jurisdiction, is the real battleground.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The promise of tribunals — expertise, speed and access — is delivered only when their independence is secured; the recurring constitutional litigation since 2010 shows that appointment and tenure design, not jurisdiction, is the real battleground.

SESSION 8 - MARK-SCALED STRUCTURES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.3 Mark-scaled structures denotes the constitutional rules and institutional links organised around Marks Architecture Evidence load.

Technical definition: Technically, Mark-scaled structures is analysed by relating Thesis -> two anchors (Article/Act + case) -> one qualification -> verdict to 3 units, then testing the relationship through 5-6 units and 7-8 units + an "independence vs capacity" paragraph.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tribunal legitimacy depends on specialised adjudication, independent appointments, adequate capacity and preserved constitutional review rather than formal creation alone.

MUST-WRITE KEYWORDS

- Mark-scaled structures
- Thesis -> two anchors (Article/Act + case) -> one qualification -> verdict
- 3 units
- 5-6 units
- 7-8 units + an "independence vs capacity" paragraph
- 6.3 Mark-scaled structures

How to use them: Frame the answer through Mark-scaled structures; define Thesis -> two anchors (Article/Act + case) -> one qualification -> verdict, connect 3 units with 5-6 units to explain the mechanism, and use 7-8 units + an "independence vs capacity" paragraph for the decisive comparison or qualification.

6.3 Mark-scaled structures denotes the constitutional rules and institutional links organised around Marks Architecture Evidence load. 6.3 Mark-scaled structures operates through 10 Thesis -> two anchors (Article/Act + case) -> one qualification -> verdict 3 units, connected with 15 Thesis -> constitutional design -> case-law settlement -> counter-risk (independence/burden) -> graded verdict 5-6 units. The operative mechanism matters because marks Architecture Evidence load. Its principal consequence is that marks Architecture Evidence load. The decisive contrast is between Marks Architecture Evidence load and Marks Architecture Evidence load. The exam-safe limitation is that marks Architecture Evidence load.

6.3 MARK-SCALED STRUCTURES

AXIS 1

- Marks Architecture Evidence load

AXIS 2

- 10 Thesis → two anchors (Article/Act + case) → one qualification → verdict 3 units

AXIS 3

- 15 Thesis → constitutional design → case-law settlement → counter-risk (independence/burden) → graded verdict 5–6 units

Topic-specific visual map: 6.3 Mark-scaled structures.

Marks	Architecture	Evidence load
10	Thesis → two anchors (Article/Act + case) → one qualification → verdict	3 units
15	Thesis → constitutional design → case-law settlement → counter-risk (independence/burden) → graded verdict	5-6 units
20	Thesis → design → judicial-review settlement → reform (2017/2021) → Lok Adalat/ADR comparison → graded verdict	7-8 units + an "independence vs capacity" paragraph

CLOSING RECALL FLOW - MARK-SCALED STRUCTURES

SUBTOPIC CLOSURE FLOW | Mark-scaled structures

1. KEY TERMS / DEFINITIONS

Mark-scaled structures · Thesis → two anchors (Article/Act + case) → one qualification → verdict · 3 units · 5-6 units · 7-8 units + an "independence vs capacity" paragraph · 6.3 Mark-scaled structures

2. MECHANISM / ARGUMENT

The decisive contrast is between Marks Architecture Evidence load and Marks Architecture Evidence load.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that marks Architecture Evidence load.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the exam-safe limitation is that marks Architecture Evidence load.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal legitimacy depends on specialised adjudication, independent appointments, adequate capacity and preserved constitutional review rather than formal creation alone.

SESSION 9 - BANK A - CONSTITUTIONAL DESIGN AND THE JUDICIAL-REVIEW SETTLEMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.4 Bank A - Constitutional design and the judicial-review settlement denotes the constitutional rules and institutional links organised around Constitutional rule.

Technical definition: The decisive contrast is between Constitutional rule and Constitutional rule.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Union of India v. R. Gandhi (2010) accepted tribunalisation of company law only with qualifications, selection and tenure safeguards preserving judicial independence.

MUST-WRITE KEYWORDS

- Bank A
- Constitutional design
- the judicial-review settlement
- Claim
- Provisions
- Art 323A

How to use them: Frame the answer through Bank A; define Constitutional design, connect the judicial-review settlement with Claim to explain the mechanism, and use Provisions for the decisive comparison or qualification.

6.4 Bank A - Constitutional design and the judicial-review settlement denotes the constitutional rules and institutional links organised around Constitutional rule. 6.4 Bank A - Constitutional design and the judicial-review settlement operates through Operating mechanism, connected with Exam distinction. The operative mechanism matters because constitutional rule. Its principal consequence is that constitutional rule. The decisive contrast is between Constitutional rule and Constitutional rule. The exam-safe limitation is that constitutional rule.

- **Claim:** the two tribunal Articles differ in subject and law-maker. **Provisions:** **Art 323A** (public-service recruitment/service conditions; **Parliament only**; one field) vs **Art 323B** (enumerated fields - taxation, foreign exchange, labour, land reform, elections, etc.; **Parliament or State Legislature**; multiple fields); both inserted by the **42nd Amendment, 1976** (Part XIV-A). **Mechanism:** enables a specialised, exclusive adjudicatory channel. **Limitation:** [FACT] they are *not* identical - the exclusion-of-review clauses in both were read down by *L. Chandra Kumar*.
- **Claim:** CAT is a creature of statute, not the Constitution. **Provision:** the **Administrative Tribunals Act, 1985** created the **Central Administrative Tribunal** and enables **State (SAT)** and **Joint** tribunals; CAT covers recruitment and service matters of covered Union public servants. **Mechanism:** specialist members + simpler procedure. **Limitation:** [LIMIT] statutory jurisdiction with exclusions (e.g., defence personnel, Supreme Court staff, parliamentary secretariat staff).
- **Claim:** tribunal substitution was accepted only if the alternative is effective. **Case:** *S.P. Sampath Kumar v. Union of India (1987)* upheld the 1985 Act on condition that tribunals are an "**effective alternative institutional mechanism**" with the efficacy of the High Court. **Mechanism:** set the independence/efficacy test. **Limitation:** [LIMIT] it initially excluded HC review (leaving only the SC) - corrected in 1997.
- **Claim:** judicial review of tribunals cannot be excluded. **Case:** *L. Chandra Kumar v. Union of India (1997)* (seven-judge bench) - review under **Art 226/227 and 32 is basic structure**; the exclusion clauses in **Art 323A(2)(d)/323B(3)(d)** are **unconstitutional** to that extent; tribunal orders lie to a **HC Division Bench**. **Mechanism:** tribunals became supplemental, not substitutes. **Limitation:** [LIMIT] it adds a tier - speed then depends on first-instance quality.
- **Claim:** tribunalising a court's core function needs independence guarantees. **Case:** *Union of India v. R. Gandhi (2010)* (NCLT/NCLAT) upheld transferring company-law jurisdiction to tribunals **only if** members' qualifications, selection and service conditions preserve **independence and separation of powers**. **Mechanism:** the template for every later tribunal-reform challenge. **Limitation:** [FACT] a rule violating these standards is struck down, as repeatedly since.
- **Claim:** courts will strike down tribunals that usurp their constitutional role. **Case:** *Madras Bar Association v. Union of India (2014)* struck down the **National Tax Tribunal Act, 2005** because vesting the HC's power over substantial questions of law in an executive-controlled tribunal violated **separation of powers/basic structure**. **Mechanism:** an outer limit on tribunalisation. **Limitation:** [LIMIT] the objection was to the *design*, not to tax adjudication as such.

CLOSING RECALL FLOW - BANK A - CONSTITUTIONAL DESIGN AND THE JUDICIAL-REVIEW SETTLEMENT

SUBTOPIC CLOSURE FLOW | Bank A - Constitutional design and the judicial-review settlement

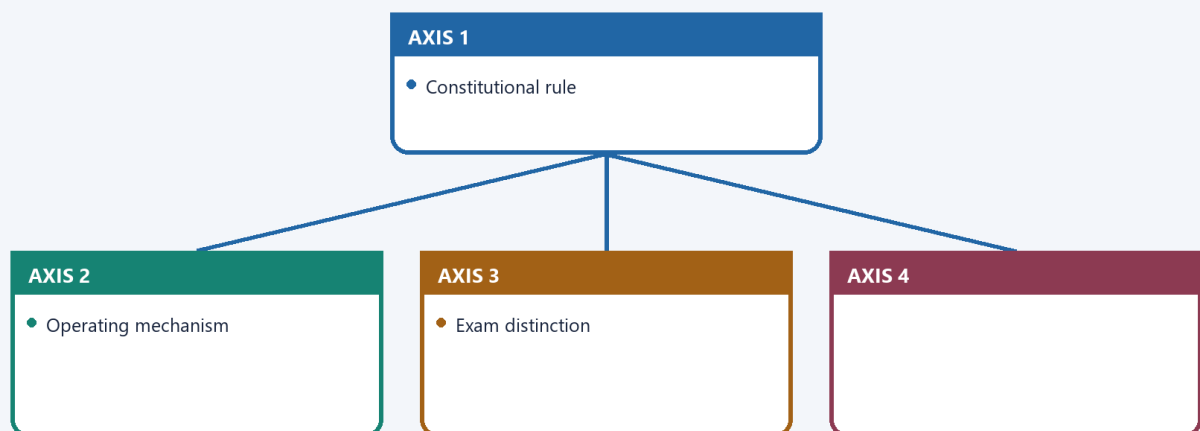
1. KEY TERMS / DEFINITIONS Bank A · Constitutional design · the judicial-review settlement · Claim · Provisions · Art 323A	2. MECHANISM / ARGUMENT Limitation: they are not identical - the exclusion-of-review clauses in both were read down by L.	3. CONSEQUENCE / CONTRAST The decisive contrast is between Constitutional rule and Constitutional rule.	4. UPSC TRAP / ANSWER-USE Limitation: the objection was to the design, not to tax adjudication as such.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Union of India v. R. Gandhi (2010) accepted tribunalisation of company law only with qualifications, selection and tenure safeguards preserving judicial independence.

11. 6.5 Bank B - Rationalisation, reform litigation and current status

6.5 Bank B - Rationalisation, reform litigation and current status denotes the constitutional rules and institutional links organised around Constitutional rule. 6.5 Bank B - Rationalisation, reform litigation and current status operates through Operating mechanism, connected with Exam distinction. The operative mechanism matters because constitutional rule. Its principal consequence is that constitutional rule. The decisive contrast is between Constitutional rule and Constitutional rule. The exam-safe limitation is that constitutional rule.

6.5 BANK B — RATIONALISATION, REFORM LITIGATION AND CURRENT STATUS



Topic-specific visual map: 6.5 Bank B - Rationalisation, reform litigation and current status.

- **Claim:** rationalisation began before 2021. **Provision:** the **Finance Act, 2017** (Part XIV) merged/abolished several tribunals and empowered the Centre to frame rules on members' qualifications, appointment and tenure. **Mechanism:** consolidation + executive rule-making power. **Limitation:** [LIMIT] it was passed as a **Money Bill** - a contested route.
- **Claim:** the 2017 rules were struck down for compromising independence. **Case:** *Rojer Mathew v. South Indian Bank Ltd* (2019) invalidated the **Tribunal Rules 2017** as contrary to judicial independence, ordered re-framing, and referred the **Money-Bill question to a larger bench**. **Mechanism:** judicial policing of appointment design. **Limitation:** [CURRENT] the Money-Bill reference remained pending - do not state it as settled.
- **Claim:** the 2021 Act repeated defects and was repeatedly corrected. **Provision/status:** the **Tribunals Reforms Act, 2021** abolished several appellate tribunals (transferring work to HCs/commercial courts) and prescribed a **four-year tenure, minimum age of 50 and a search-cum-selection committee**. [CURRENT] [FACT] On **19 Nov 2025 (2025 INSC 1330)** the SC struck down the re-enacted age/panel/tenure/allowance provisions, made **MBA (IV)/(V)** controlling, and directed a **National Tribunals Commission** within four months; a **9 Mar 2026** order gave temporary continuity to specified serving incumbents until **8 Sep 2026** or the maximum age. **Limitation:** [CURRENT] these dated holdings move - re-verify before citing; a struck-down provision is not the law.

SESSION 10 - BANK C - LOK ADALATS VERSUS ARBITRATION (THE ADR DISTINCTION)

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.6 Bank C - Lok Adalats versus arbitration (the ADR distinction) denotes the constitutional rules and institutional links organised around Axis Lok Adalat Arbitration.

Technical definition: Provision: the Legal Services Authorities Act, 1987 (constitutional anchor Art 39A) gives Lok Adalats statutory status; they settle pending or pre-litigation disputes by compromise; the award is deemed a decree of a civil court, is final and binding, and no appeal lies (§21).

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Ordinary Lok Adalats require consensual settlement, whereas arbitration is contractual adjudication; neither model can be described accurately through the other's procedure.

MUST-WRITE KEYWORDS

- Bank C
- Lok Adalats versus arbitration (the ADR distinction)
- Claim
- Provision
- Legal Services Authorities Act, 1987
- Art 39A

How to use them: Frame the answer through Bank C; define Lok Adalats versus arbitration (the ADR distinction), connect Claim with Provision to explain the mechanism, and use Legal Services Authorities Act, 1987 for the decisive comparison or qualification.

6.6 Bank C - Lok Adalats versus arbitration (the ADR distinction) denotes the constitutional rules and institutional links organised around Axis Lok Adalat Arbitration. 6.6 Bank C - Lok Adalats versus arbitration (the ADR distinction) operates through Source Statutory - LSA Act 1987 (Art 39A) Contractual - A&C Act 1996, connected with Nature Court-annexed conciliation/compromise Private adjudication. The operative mechanism matters because consent Referral or consent; PLA decides merits for public utilities Consent via arbitration agreement. Its principal consequence is that cost Free; court fee refunded Parties bear arbitrator/institutional fees. The decisive contrast is between Outcome Award = civil decree, final, no appeal Award enforceable as decree; §34 challenge only and Axis Lok Adalat Arbitration. The exam-safe limitation is that axis Lok Adalat Arbitration.

- **Claim:** Lok Adalats are a statutory access-to-justice mechanism. **Provision:** the **Legal Services Authorities Act, 1987** (constitutional anchor **Art 39A**) gives Lok Adalats statutory status; they settle pending or pre-litigation disputes by **compromise**; the **award is deemed a decree of a civil court, is final and binding, and no appeal lies** (§21). **Permanent Lok Adalats (§22B)** can decide the **merits** of **public-utility-service** disputes if conciliation fails. **Mechanism:** free, quick, conciliatory closure. **Limitation:** [LIMIT] ordinary Lok Adalats need the parties' consent to settle, and cannot try an offence.
- **Claim:** arbitration is a contractual, adjudicatory ADR. **Provision:** the **Arbitration and Conciliation Act, 1996** (based on the UNCITRAL Model Law) lets parties, by an **arbitration agreement**, have a **private tribunal adjudicate**; the **award is final and enforceable as a decree (§36)** and challengeable only on limited **§34** grounds. **Mechanism:** party autonomy over forum, procedure and seat. **Limitation:** [LIMIT] costs fall on the parties; courts do not re-hear the merits.

Axis	Lok Adalat	Arbitration
Source	Statutory - LSA Act 1987 (Art 39A)	Contractual - A&C Act 1996
Nature	Court-annexed conciliation/compromise	Private adjudication
Consent	Referral or consent; PLA decides merits for public utilities	Consent via arbitration agreement

Axis	Lok Adalat	Arbitration
Cost	Free; court fee refunded	Parties bear arbitrator/institutional fees
Outcome	Award = civil decree, final, no appeal	Award enforceable as decree; §34 challenge only

CLOSING RECALL FLOW - BANK C - LOK ADALATS VERSUS ARBITRATION (THE ADR DISTINCTION)

SUBTOPIC CLOSURE FLOW | Bank C - Lok Adalats versus arbitration (the ADR distinction)

1. KEY TERMS / DEFINITIONS

Bank C · Lok Adalats versus arbitration (the ADR distinction) · Claim · Provision · Legal Services Authorities Act, 1987 · Art 39A

2. MECHANISM / ARGUMENT

Provision: the Legal Services Authorities Act, 1987 (constitutional anchor Art 39A) gives Lok Adalats statutory status; they settle pending or pre-litigation disputes by compromise; the award is deemed a decree of a civil court, is final and binding, and no appeal lies (§21).

3. CONSEQUENCE / CONTRAST

The decisive contrast is between Outcome Award = civil decree, final, no appeal Award enforceable as decree; §34 challenge only and Axis Lok Adalat Arbitration.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: its principal consequence is that cost Free.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ordinary Lok Adalats require consensual settlement, whereas arbitration is contractual adjudication; neither model can be described accurately through the other's procedure.

SESSION 11 - MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.7 Mechanism, institutional incentives and consequences denotes the constitutional rules and institutional links organised around Constitutional rule.

Technical definition: Its principal consequence is that constitutional rule.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Because government is a major tribunal litigant, executive control over appointments, tenure and finance can compromise the independence of the forum judging it.

MUST-WRITE KEYWORDS

- institutional incentives
- consequences
- Why tribunals were created
- National Tribunals Commission logic
- Constitutional
- 6.7 Mechanism, institutional incentives and consequences

How to use them: Frame the answer through institutional incentives; define consequences, connect Why tribunals were created with National Tribunals Commission logic to explain the mechanism, and use Constitutional for the decisive comparison or qualification.

6.7 Mechanism, institutional incentives and consequences denotes the constitutional rules and institutional links organised around Constitutional rule. 6.7 Mechanism, institutional incentives and consequences operates through Operating mechanism, connected with Exam distinction. The operative mechanism matters because constitutional rule. Its principal consequence is that constitutional rule. The decisive contrast is between Constitutional rule and Constitutional rule. The exam-safe limitation is that constitutional rule.

6.7 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES

AXIS 1

- Constitutional rule

AXIS 2

- Operating mechanism

AXIS 3

- Exam distinction

AXIS 4

Topic-specific visual map: 6.7 Mechanism, institutional incentives and consequences.

- **Why tribunals were created:** to move technical, high-volume disputes to expert members under simpler procedure, easing the constitutional courts.
- **Why independence is the pressure point:** [LIMIT] because the government is the largest litigant before service and regulatory tribunals, executive control over appointments, tenure and finances creates an incentive to weaken the very forum that judges it - which is why the courts keep intervening.
- **Consequence of the L. Chandra Kumar tier:** [FACT] tribunal -> HC Division Bench -> SC preserves supervision but can *lengthen* the chain, so first-instance quality, not jurisdiction-stripping, is the real efficiency lever.
- **National Tribunals Commission logic:** [LIMIT] an independent umbrella body for appointments, infrastructure and oversight is the standing judicial prescription for breaking the appoint-and-strike-down cycle.

CLOSING RECALL FLOW - MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES

SUBTOPIC CLOSURE FLOW | Mechanism, institutional incentives and consequences

1. KEY TERMS / DEFINITIONS

institutional incentives · consequences
· Why tribunals were created · National Tribunals Commission logic · Constitutional · 6.7 Mechanism, institutional incentives and consequences

2. MECHANISM / ARGUMENT

Why tribunals were created: to move technical, high-volume disputes to expert members under simpler procedure, easing the constitutional courts.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that constitutional rule.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the decisive contrast is between Constitutional rule and Constitutional rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Because government is a major tribunal litigant, executive control over appointments, tenure and finance can compromise the independence of the forum judging it.

SESSION 12 - CRITICISM, COUNTER-ARGUMENT, VARIATION AND IMPLEMENTATION CONSTRAINTS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.8 Criticism, counter-argument, variation and implementation constraints denotes the constitutional rules and institutional links organised around Constitutional rule.

Technical definition: Variation: State tribunals under Art 323B and SATs vary in workload and independence, so uniform claims about "tribunals" must be qualified.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Rationalisation critique: abolishing appellate tribunals can merely shift pendency to already-burdened HCs/commercial courts unless benches, staff and records follow.

MUST-WRITE KEYWORDS

- Criticism
- counter-argument
- variation
- implementation constraints
- Curtailment critique
- Rationalisation critique

How to use them: Frame the answer through Criticism; define counter-argument, connect variation with implementation constraints to explain the mechanism, and use Curtailment critique for the decisive comparison or qualification.

6.8 Criticism, counter-argument, variation and implementation constraints denotes the constitutional rules and institutional links organised around Constitutional rule. 6.8 Criticism, counter-argument, variation and implementation constraints operates through Operating mechanism, connected with Exam distinction. The operative mechanism matters because constitutional rule. Its principal consequence is that constitutional rule. The decisive contrast is between Constitutional rule and Constitutional rule. The exam-safe limitation is that constitutional rule.

- **Curtailment critique:** tribunals reduce direct access to the HC and fragment appeals; counter - *L. Chandra Kumar* preserves supervisory review, so the curtailment is of original, not supervisory, jurisdiction.
- **Rationalisation critique:** [LIMIT] abolishing appellate tribunals can merely **shift pendency** to already-burdened HCs/commercial courts unless benches, staff and records follow.
- **Independence critique:** the recurring strike-downs (*R. Gandhi* -> *Rojer Mathew* -> *MBA (IV)/(V)* -> 2025 INSC 1330) show a pattern of executive-tilted rules being re-enacted; counter - persistent judicial correction is itself the safeguard working.
- **Variation:** State tribunals under Art 323B and SATs vary in workload and independence, so uniform claims about "tribunals" must be qualified.

CLOSING RECALL FLOW - CRITICISM, COUNTER-ARGUMENT, VARIATION AND IMPLEMENTATION CONSTRAINTS

SUBTOPIC CLOSURE FLOW Criticism, counter-argument, variation and implementation constraints			
1. KEY TERMS / DEFINITIONS Criticism · counter-argument · variation · implementation constraints · Curtailment critique · Rationalisation critique	2. MECHANISM / ARGUMENT Variation: State tribunals under Art 323B and SATs vary in workload and independence, so uniform claims about "tribunals" must be qualified.	3. CONSEQUENCE / CONTRAST The decisive contrast is between Constitutional rule and Constitutional rule.	4. UPSC TRAP / ANSWER-USE Chandra Kumar preserves supervisory review, so the curtailment is of original, not supervisory, jurisdiction.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Rationalisation critique: abolishing appellate tribunals can merely shift pendency to already-burdened HCs/commercial courts unless benches, staff and records follow.			

SESSION 13 - VERDICT SCAFFOLDS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.9 Verdict scaffolds denotes the constitutional rules and institutional links organised around Constitutional rule.

Technical definition: Chandra Kumar makes judicial review a floor no tribunal statute can sink below."

CAT-independence verdict: "The Central Administrative Tribunal exercises real adjudicatory authority, but an authority that remains supervised by the High Court and dependent on executive-set service conditions - independent in function, qualified in structure." Rationalisation verdict: "The 2021 rationalisation is sound in aim and suspect in execution; it delivers only where consolidation is matched by independent appointments and real capacity, as the 2025 judgment insists." ADR verdict: "Lok Adalats and arbitration solve different problems - access for the citizen, autonomy for commerce - and India's justice system needs both, not a choice between them."

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tribunals may replace ordinary courts at first instance, but *L. Chandra Kumar* preserves High Court review as a basic-structure floor that legislation cannot remove.

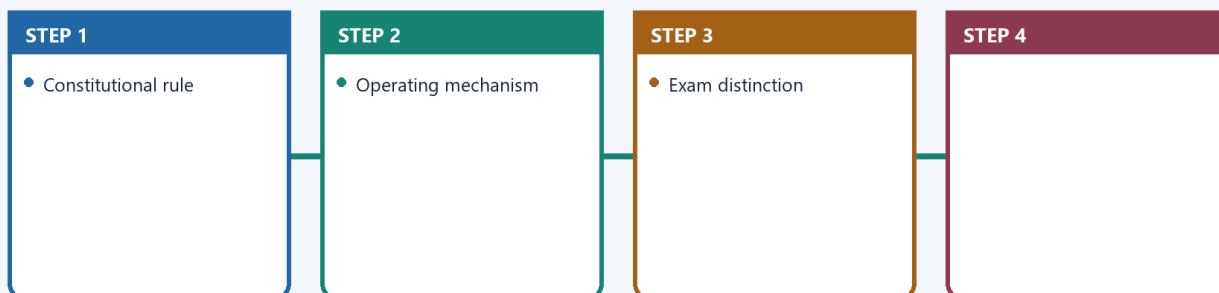
MUST-WRITE KEYWORDS

- Verdict scaffolds
- Tribunals-vs-courts verdict
- CAT-independence verdict
- Rationalisation verdict
- ADR verdict
- 6.9 Verdict scaffolds

How to use them: Frame the answer through Verdict scaffolds; define Tribunals-vs-courts verdict, connect CAT-independence verdict with Rationalisation verdict to explain the mechanism, and use ADR verdict for the decisive comparison or qualification.

6.9 Verdict scaffolds denotes the constitutional rules and institutional links organised around Constitutional rule. 6.9 Verdict scaffolds operates through Operating mechanism, connected with Exam distinction. The operative mechanism matters because constitutional rule. Its principal consequence is that constitutional rule. The decisive contrast is between Constitutional rule and Constitutional rule. The exam-safe limitation is that constitutional rule.

6.9 VERDICT SCAFFOLDS



Topic-specific visual map: 6.9 Verdict scaffolds.

- **Tribunals-vs-courts verdict:** "Tribunals curtail the ordinary courts' first-instance reach but not their constitutional supervision; *L. Chandra Kumar* makes judicial review a floor no tribunal statute can sink below."
- **CAT-independence verdict:** "The Central Administrative Tribunal exercises real adjudicatory authority, but an authority that remains supervised by the High Court and dependent on executive-set service conditions - independent in function, qualified in structure."
- **Rationalisation verdict:** "The 2021 rationalisation is sound in aim and suspect in execution; it delivers only where consolidation is matched by independent appointments and real capacity, as the 2025 judgment insists."
- **ADR verdict:** "Lok Adalats and arbitration solve different problems - access for the citizen, autonomy for commerce - and India's justice system needs both, not a choice between them."

CLOSING RECALL FLOW - VERDICT SCAFFOLDS

SUBTOPIC CLOSURE FLOW | Verdict scaffolds

1. KEY TERMS / DEFINITIONS Verdict scaffolds · Tribunals-vs-courts verdict · CAT-independence verdict · Rationalisation verdict · ADR verdict · 6.9 Verdict scaffolds	2. MECHANISM / ARGUMENT Chandra Kumar makes judicial review a floor no tribunal statute can sink below." CAT-independence verdict: "The Central Administrative Tribunal exercises real adjudicatory authority, but an authority that remains supervised by the High Court and dependent on executive-set service conditions - independent in function, qualified in structure." Rationalisation verdict: "The 2021 rationalisation is sound in aim and suspect in execution; it delivers only where consolidation is matched by independent appointments and real capacity, as the 2025 judgment insists." ADR verdict: "Lok Adalats and arbitration solve different problems - access for the citizen, autonomy for commerce - and India's justice system needs both, not a choice between them."	3. CONSEQUENCE / CONTRAST The decisive contrast is between Constitutional rule and Constitutional rule.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: its principal consequence is that constitutional rule.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunals may replace ordinary courts at first instance, but L. Chandra Kumar preserves High Court review as a basic-structure floor that legislation cannot remove.

SESSION 14 - PRELIMS CLOSE-OPTION DISTINCTIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 6.10 Prelims close-option distinctions denotes the constitutional rules and institutional links organised around Confusion pair Correct discrimination.

Technical definition: Technically, Prelims close-option distinctions is analysed by relating Parliament only to Parliament or State, then testing the relationship through effective and basic structure.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 323A and 323B allocate different tribunal fields, while operative statutes and binding judgments determine the current appointment and review framework.

MUST-WRITE KEYWORDS

- Prelims close-option distinctions
- Parliament only
- Parliament or State
- effective
- basic structure
- 42nd Amendment 1976

How to use them: Frame the answer through Prelims close-option distinctions; define Parliament only, connect Parliament or State with effective to explain the mechanism, and use basic structure for the decisive comparison or qualification.

6.10 Prelims close-option distinctions denotes the constitutional rules and institutional links organised around Confusion pair Correct discrimination. 6.10 Prelims close-option distinctions operates through L. Chandra Kumar vs R. Gandhi 1997 = review cannot be excluded ; 2010 = tribunal composition/independence standards, connected with Permanent Lok Adalat Can decide the merits of public-utility disputes if settlement fails (§22B) - an exception to pure conciliation. The operative mechanism matters because tribunal statute vs current law The 2021 tenure/age/panel rules were struck down - do not cite them as operative. Its principal consequence is that confusion pair Correct discrimination. The decisive contrast is between Confusion pair Correct discrimination and Confusion pair Correct discrimination. The exam-safe limitation is that confusion pair Correct discrimination.

Confusion pair	Correct discrimination
Art 323A vs 323B	323A = service matters, Parliament only ; 323B = enumerated fields, Parliament or State - both by the 42nd Amendment 1976

Confusion pair	Correct discrimination
Sampath Kumar vs L. Chandra Kumar	1987 accepted substitution if effective ; 1997 held HC review is basic structure and exclusion unconstitutional
L. Chandra Kumar vs R. Gandhi	1997 = review cannot be excluded ; 2010 = tribunal composition/independence standards
Lok Adalat award vs arbitral award	Lok Adalat award = civil decree, no appeal (§21) ; arbitral award = enforceable as decree but §34 challenge available
Permanent Lok Adalat	Can decide the merits of public-utility disputes if settlement fails (§22B) - an exception to pure conciliation
Finance Act 2017 vs Tribunals Reforms Act 2021	2017 = first rationalisation + rule-making power; 2021 = abolition of listed appellate tribunals + service framework
Tribunal statute vs current law	The 2021 tenure/age/panel rules were struck down - do not cite them as operative

CLOSING RECALL FLOW - PRELIMS CLOSE-OPTION DISTINCTIONS

SUBTOPIC CLOSURE FLOW Prelims close-option distinctions			
1. KEY TERMS / DEFINITIONS Prelims close-option distinctions · Parliament only · Parliament or State · effective · basic structure · 42nd Amendment 1976	2. MECHANISM / ARGUMENT The operative mechanism matters because tribunal statute vs current law The 2021 tenure/age/panel rules were struck down - do not cite them as operative.	3. CONSEQUENCE / CONTRAST The decisive contrast is between Confusion pair Correct discrimination and Confusion pair Correct discrimination.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: its principal consequence is that confusion pair Correct discrimination.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 323A and 323B allocate different tribunal fields, while operative statutes and binding judgments determine the current appointment and review framework.			

17. 6.11 Factual-risk and current-status controls

6.11 Factual-risk and current-status controls denotes the constitutional rules and institutional links organised around <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025. 6.11 Factual-risk and current-status controls operates through <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025, connected with <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025. The operative mechanism matters because <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025. Its principal consequence is that <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025. The decisive contrast is between <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025 and <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025. The exam-safe limitation is that <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025.

6.11 FACTUAL-RISK AND CURRENT-STATUS CONTROLS

AXIS 1

- <!-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025

AXIS 2

AXIS 3

- [FACT] Art 323A/323B were inserted by the **42nd Amendment (1976)**; the **AT Act is 1985**, the **LSA Act is 1987**, the **A&C Act is 1996** - keep the years exact.
- [FACT] *L. Chandra Kumar* (1997) preserved **HC Art 226/227 review**; it did **not** abolish tribunals or bar CAT from deciding constitutional questions at first instance.
- [LIMIT]/[CURRENT] Do **not** state tribunal **tenure, minimum age, pecuniary limits, vacancy counts or the Money-Bill reference** as settled - mark [CURRENT] and re-verify; a **struck-down** provision or a **Bill/Ordinance** is not the law.
- [FACT] The **National Tribunals Commission** is a **judicially directed** body - describe it as directed/pending, not as an operating institution, unless verified.
- [LIMIT] Distinguish Constitution text (Art 323A/B, 226/227, 39A) from statute (AT Act 1985, LSA Act 1987, A&C Act 1996, Finance Act 2017, Tribunals Reforms Act 2021) from judicial interpretation (*Sampath Kumar*, *L. Chandra Kumar*, *R. Gandhi*, *MBA*, *Rojer Mathew*) - never blur the categories.

SESSION 15 - ARTICLES 323A AND 323B: EXACT CONSTITUTIONAL DISTINCTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 323A and 323B: exact constitutional distinction denotes the constitutional rules and institutional links organised around Axis Article 323A Article 323B.

Technical definition: The decisive contrast is between court exclusion text originally contemplated exclusion except Article 136 similar exclusion possibility and current control High Court review survives under L.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 323A and 323B enable tribunal legislation but do not themselves create the CAT or every subject-specific tribunal.

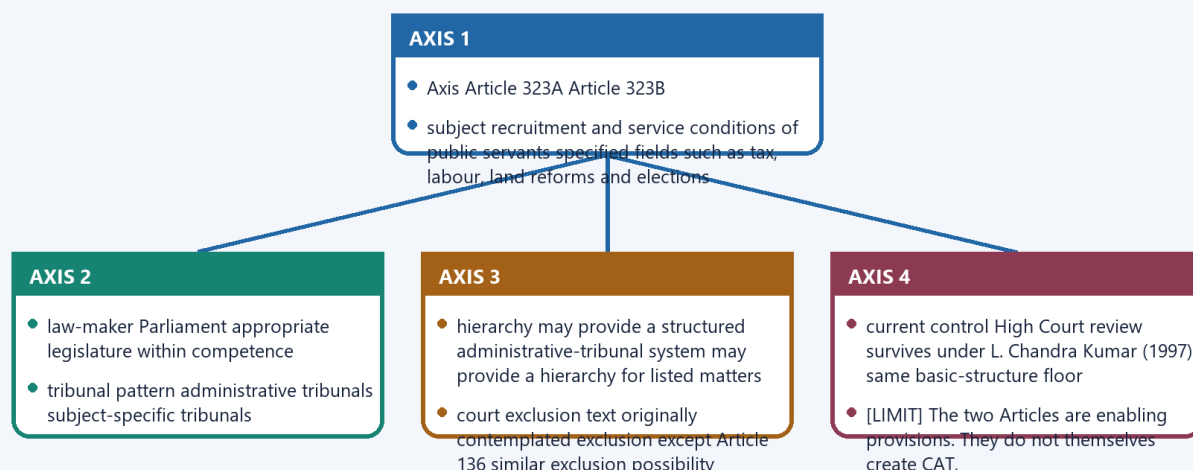
MUST-WRITE KEYWORDS

- **Articles 323A**
- **exact constitutional distinction**
- **subject**
- **recruitment and service conditions of public servants**
- **law-maker**
- **323B**

How to use them: Frame the answer through Articles 323A; define exact constitutional distinction, connect subject with recruitment and service conditions of public servants to explain the mechanism, and use law-maker for the decisive comparison or qualification.

Articles 323A and 323B: exact constitutional distinction denotes the constitutional rules and institutional links organised around Axis Article 323A Article 323B. Articles 323A and 323B: exact constitutional distinction operates through subject recruitment and service conditions of public servants specified fields such as tax, labour, land reforms and elections, connected with law-maker Parliament appropriate legislature within competence. The operative mechanism matters because tribunal pattern administrative tribunals subject-specific tribunals. Its principal consequence is that hierarchy may provide a structured administrative-tribunal system may provide a hierarchy for listed matters. The decisive contrast is between court exclusion text originally contemplated exclusion except Article 136 similar exclusion possibility and current control High Court review survives under *L. Chandra Kumar* (1997) same basic-structure floor. The exam-safe limitation is that [LIMIT] The two Articles are enabling provisions. They do not themselves create CAT,.

ARTICLES 323A AND 323B: EXACT CONSTITUTIONAL DISTINCTION



Topic-specific visual map: Articles 323A and 323B: exact constitutional distinction.

Axis	Article 323A	Article 323B
subject	recruitment and service conditions of public servants	specified fields such as tax, labour, land reforms and elections
law-maker	Parliament	appropriate legislature within competence
tribunal pattern	administrative tribunals	subject-specific tribunals
hierarchy	may provide a structured administrative-tribunal system	may provide a hierarchy for listed matters
court exclusion text	originally contemplated exclusion except Article 136	similar exclusion possibility
current control	High Court review survives under L. Chandra Kumar (1997)	same basic-structure floor

[LIMIT] The two Articles are enabling provisions. They do not themselves create CAT, every State tribunal or every subject tribunal.

CLOSING RECALL FLOW - ARTICLES 323A AND 323B: EXACT CONSTITUTIONAL DISTINCTION

SUBTOPIC CLOSURE FLOW | Articles 323A and 323B: exact constitutional distinction

1. KEY TERMS / DEFINITIONS

Articles 323A · exact constitutional distinction · subject · recruitment and service conditions of public servants · law-maker · 323B

2. MECHANISM / ARGUMENT

The decisive contrast is between court exclusion text originally contemplated exclusion except Article 136 similar exclusion possibility and current control High Court review survives under L.

3. CONSEQUENCE / CONTRAST

They do not themselves create CAT, every State tribunal or every subject tribunal.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: its principal consequence is that hierarchy may provide a structured administrative-tribunal system may provide...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 323A and 323B enable tribunal legislation but do not themselves create the CAT or every subject-specific tribunal.

SESSION 16 - CAT PROCESS, EXCLUSIONS AND JUDICIAL-REVIEW CHAIN

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: CAT process, exclusions and judicial-review chain denotes the constitutional rules and institutional links organised around covered recruitment/service matter - Original Application before competent CAT bench.

Technical definition: BOUNDARIES specified constitutional officeholders and excluded services follow the Act's exact text; criminal prosecution, ordinary civil disputes and every public-employment question do not automatically become CAT matters.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

L. Chandra Kumar preserves High Court review over tribunal decisions, but a longer appellate chain makes first-instance quality essential to efficiency.

MUST-WRITE KEYWORDS

- CAT process
- exclusions
- judicial-review chain
- Article 136
- CAT process, exclusions and judicial-review chain
- CAT

How to use them: Frame the answer through CAT process; define exclusions, connect judicial-review chain with Article 136 to explain the mechanism, and use CAT process, exclusions and judicial-review chain for the decisive comparison or qualification.

CAT process, exclusions and judicial-review chain denotes the constitutional rules and institutional links organised around covered recruitment/service matter - Original Application before competent CAT bench. CAT process, exclusions and judicial-review chain operates through notice, pleadings, records, hearing - reasoned tribunal order, connected with High Court Division Bench under Articles 226/227. The operative mechanism matters because supreme Court route under the Constitution. Its principal consequence is that natural justice not rigidly bound by CPC civil-court-type statutory powers. The decisive contrast is between contempt power as provided interim relief within jurisdiction and specified constitutional officeholders and excluded services follow the Act's exact text. The exam-safe limitation is that criminal prosecution, ordinary civil disputes and every public-employment question do not.

CAT PROCESS, EXCLUSIONS AND JUDICIAL-REVIEW CHAIN

AXIS 1

- covered recruitment/service matter - Original Application before competent CAT bench
- notice, pleadings, records, hearing - reasoned tribunal order

AXIS 2

- High Court Division Bench under Articles 226/227
- Supreme Court route under the Constitution.

AXIS 3

- natural justice not rigidly bound by CPC civil-court-type statutory powers
- contempt power as provided interim relief within jurisdiction.

AXIS 4

- specified constitutional officeholders and excluded services follow the Act's exact text;
- criminal prosecution, ordinary civil disputes and every public-employment question do not

Topic-specific visual map: CAT process, exclusions and judicial-review chain.

SERVICE GRIEVANCE covered recruitment/service matter -> Original Application before competent CAT bench -> notice, pleadings, records, hearing -> reasoned tribunal order -> High Court Division Bench under Articles 226/227 -> Supreme Court route under the Constitution.

PROCEDURE natural justice | not rigidly bound by CPC | civil-court-type statutory powers

| contempt power as provided | interim relief within jurisdiction.

BOUNDARIES specified constitutional officeholders and excluded services follow the Act's exact text; criminal prosecution, ordinary civil disputes and every public-employment question do not automatically become CAT matters.

[LIMIT] Article 136 is not a substitute for the L. Chandra Kumar High Court review chain.

CLOSING RECALL FLOW - CAT PROCESS, EXCLUSIONS AND JUDICIAL-REVIEW CHAIN

SUBTOPIC CLOSURE FLOW | CAT process, exclusions and judicial-review chain

1. KEY TERMS / DEFINITIONS

CAT process · exclusions · judicial-review chain · Article 136 · CAT process, exclusions and judicial-review chain · CAT

2. MECHANISM / ARGUMENT

Its principal consequence is that natural justice not rigidly bound by CPC civil-court-type statutory powers.

3. CONSEQUENCE / CONTRAST

BOUNDARIES specified constitutional officeholders and excluded services follow the Act's exact text; criminal prosecution, ordinary civil disputes and every public-employment question do not automatically become CAT matters.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the decisive contrast is between contempt power as provided interim relief within jurisdiction and...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: L. Chandra Kumar preserves High Court review over tribunal decisions, but a longer appellate chain makes first-instance quality essential to efficiency.

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which statement most accurately describes Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It creates every tax tribunal.
- C. States alone legislate under Article 323A.
- D. It abolishes High Courts.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM2. Which statement most accurately describes Article 323B?

- A. It is identical to Article 323A.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It automatically creates a national appellate tribunal.
- D. It is limited to Union civil servants.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM3. Which statement most accurately describes Administrative Tribunals Act 1985?

- A. It is a constitutional amendment.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM4. Which statement most accurately describes CAT jurisdiction?

- A. CAT tries corruption offences.
- B. CAT reviews constitutional amendments.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM5. Which statement most accurately describes procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. Flexible procedure means arbitrary procedure.
- C. CAT has no power to summon evidence.
- D. Natural justice never applies to tribunals.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM6. Which statement most accurately describes judicial review?

- A. Tribunal orders go only by direct Article 136 appeal.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. High Court review was permanently excluded.
- D. CAT can overrule the Supreme Court.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM7. Which statement most accurately describes independence?

- A. Executive funding is legally irrelevant.
- B. Short tenure always improves neutrality.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Expert members alone guarantee independence.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM8. Which statement most accurately describes rationalisation?

- A. Abolition removes judicial review.
- B. Rationalisation automatically reduces delay.
- C. Every merger is unconstitutional.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM9. Which statement most accurately describes R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It abolished all tribunals.
- C. It made administrative members constitutional judges.
- D. It removed qualification standards.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM10. Which statement most accurately describes Madras Bar Association?

- A. It bars Parliament from creating specialist forums.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It treats tenure as purely executive policy.
- D. It removes court review of appointments.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM11. Which statement most accurately describes Rojer Mathew?

- A. It held every Finance Act invalid.
- B. It removed judicial members.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It made tribunal recommendations binding legislation.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM12. Which statement most accurately describes CAT comparison?

- A. A Lok Adalat is an Article 323A tribunal.

- B. CAT and UPSC perform the same role.
- C. A commission's recommendation is a judicial decree.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM13. Which is the safest UPSC distinction concerning Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It creates every tax tribunal.
- C. States alone legislate under Article 323A.
- D. It abolishes High Courts.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM14. Which is the safest UPSC distinction concerning Article 323B?

- A. It is identical to Article 323A.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It automatically creates a national appellate tribunal.
- D. It is limited to Union civil servants.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM15. Which is the safest UPSC distinction concerning Administrative Tribunals Act 1985?

- A. It makes CAT a High Court.
- B. It is a constitutional amendment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It governs all private employment.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM16. Which is the safest UPSC distinction concerning CAT jurisdiction?

- A. CAT tries corruption offences.
- B. CAT reviews constitutional amendments.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM17. Which is the safest UPSC distinction concerning procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. CAT has no power to summon evidence.

- C. Natural justice never applies to tribunals.
- D. Flexible procedure means arbitrary procedure.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM18. Which is the safest UPSC distinction concerning judicial review?

- A. CAT can overrule the Supreme Court.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. Tribunal orders go only by direct Article 136 appeal.
- D. High Court review was permanently excluded.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM19. Which is the safest UPSC distinction concerning independence?

- A. Expert members alone guarantee independence.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Short tenure always improves neutrality.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM20. Which is the safest UPSC distinction concerning rationalisation?

- A. Rationalisation automatically reduces delay.
- B. Every merger is unconstitutional.
- C. Abolition removes judicial review.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM21. Which is the safest UPSC distinction concerning R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It removed qualification standards.
- C. It abolished all tribunals.
- D. It made administrative members constitutional judges.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM22. Which is the safest UPSC distinction concerning Madras Bar Association?

- A. It bars Parliament from creating specialist forums.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It treats tenure as purely executive policy.
- D. It removes court review of appointments.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM23. Which is the safest UPSC distinction concerning Rojer Mathew?

- A. It removed judicial members.
- B. It made tribunal recommendations binding legislation.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It held every Finance Act invalid.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM24. Which is the safest UPSC distinction concerning CAT comparison?

- A. A Lok Adalat is an Article 323A tribunal.
- B. CAT and UPSC perform the same role.
- C. A commission's recommendation is a judicial decree.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM25. A candidate makes a close-option error about Article 323A. Which correction is most accurate?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It abolishes High Courts.
- C. It creates every tax tribunal.
- D. States alone legislate under Article 323A.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM26. A candidate makes a close-option error about Article 323B. Which correction is most accurate?

- A. It is limited to Union civil servants.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It is identical to Article 323A.
- D. It automatically creates a national appellate tribunal.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM27. A candidate makes a close-option error about Administrative Tribunals Act 1985. Which correction is most accurate?

- A. It is a constitutional amendment.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM28. A candidate makes a close-option error about CAT jurisdiction. Which correction is most accurate?

- A. CAT tries corruption offences.
- B. CAT reviews constitutional amendments.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM29. A candidate makes a close-option error about procedure and powers. Which correction is most accurate?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. CAT has no power to summon evidence.
- C. Natural justice never applies to tribunals.
- D. Flexible procedure means arbitrary procedure.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM30. A candidate makes a close-option error about judicial review. Which correction is most accurate?

- A. CAT can overrule the Supreme Court.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. Tribunal orders go only by direct Article 136 appeal.
- D. High Court review was permanently excluded.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM31. A candidate makes a close-option error about independence. Which correction is most accurate?

- A. Expert members alone guarantee independence.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Short tenure always improves neutrality.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM32. A candidate makes a close-option error about rationalisation. Which correction is most accurate?

- A. Abolition removes judicial review.
- B. Rationalisation automatically reduces delay.
- C. Every merger is unconstitutional.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM33. A candidate makes a close-option error about R. Gandhi. Which correction is most accurate?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It abolished all tribunals.
- C. It made administrative members constitutional judges.
- D. It removed qualification standards.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM34. A candidate makes a close-option error about Madras Bar Association. Which correction is most accurate?

- A. It treats tenure as purely executive policy.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It removes court review of appointments.
- D. It bars Parliament from creating specialist forums.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM35. A candidate makes a close-option error about Rojer Mathew. Which correction is most accurate?

- A. It removed judicial members.
- B. It made tribunal recommendations binding legislation.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It held every Finance Act invalid.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM36. A candidate makes a close-option error about CAT comparison. Which correction is most accurate?

- A. CAT and UPSC perform the same role.
- B. A commission's recommendation is a judicial decree.
- C. A Lok Adalat is an Article 323A tribunal.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

Remedial MCQs 1-12 - Common Error Repair

RM1. Which statement best repairs a recurring error about Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. States alone legislate under Article 323A.
- C. It abolishes High Courts.
- D. It creates every tax tribunal.

Answer: A

Remedial explanation: The Article is enabling and subject to the judicial-review basic structure. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM2. Which statement best repairs a recurring error about Article 323B?

- A. It is identical to Article 323A.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It automatically creates a national appellate tribunal.
- D. It is limited to Union civil servants.

Answer: B

Remedial explanation: Subject, law-maker and scope distinguish the two Articles. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM3. Which statement best repairs a recurring error about Administrative Tribunals Act 1985?

- A. It is a constitutional amendment.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Remedial explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM4. Which statement best repairs a recurring error about CAT jurisdiction?

- A. CAT reviews constitutional amendments.
- B. Every PSU employee automatically falls within CAT.
- C. CAT tries corruption offences.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Remedial explanation: Employer, post and statutory notification matter. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM5. Which statement best repairs a recurring error about procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. Natural justice never applies to tribunals.
- C. Flexible procedure means arbitrary procedure.
- D. CAT has no power to summon evidence.

Answer: A

Remedial explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM6. Which statement best repairs a recurring error about judicial review?

- A. High Court review was permanently excluded.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. CAT can overrule the Supreme Court.
- D. Tribunal orders go only by direct Article 136 appeal.

Answer: B

Remedial explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM7. Which statement best repairs a recurring error about independence?

- A. Executive funding is legally irrelevant.
- B. Short tenure always improves neutrality.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Expert members alone guarantee independence.

Answer: C

Remedial explanation: Institutional design must match the judicial work transferred. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM8. Which statement best repairs a recurring error about rationalisation?

- A. Abolition removes judicial review.
- B. Rationalisation automatically reduces delay.
- C. Every merger is unconstitutional.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Remedial explanation: Capacity and transition design determine outcomes. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM9. Which statement best repairs a recurring error about R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It made administrative members constitutional judges.
- C. It removed qualification standards.
- D. It abolished all tribunals.

Answer: A

Remedial explanation: The functional-equivalence principle controls institutional design. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM10. Which statement best repairs a recurring error about Madras Bar Association?

- A. It treats tenure as purely executive policy.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It removes court review of appointments.
- D. It bars Parliament from creating specialist forums.

Answer: B

Remedial explanation: Tribunal validity and particular service-condition defects must be separated. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM11. Which statement best repairs a recurring error about Rojer Mathew?

- A. It held every Finance Act invalid.

- B. It removed judicial members.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It made tribunal recommendations binding legislation.

Answer: C

Remedial explanation: The decision belongs to a continuing line rather than a single final settlement. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM12. Which statement best repairs a recurring error about CAT comparison?

- A. A commission's recommendation is a judicial decree.
- B. A Lok Adalat is an Article 323A tribunal.
- C. CAT and UPSC perform the same role.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Remedial explanation: Institutional taxonomy prevents close-option errors. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

PYQS AND ANSWER PRACTICE

Verified and Supporting PYQs with Model Solutions

Verified direct PYQ 1 - 2018 GS-II Q12

Question: How far do you agree that tribunals curtail the jurisdiction of ordinary courts? Discuss.

Directive: How far do you agree? Discuss · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: How far do you agree that tribunals curtail the jurisdiction of ordinary courts? Discuss. The answer must respond to the directive **How far do you agree? Discuss** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Tribunals transfer first-instance jurisdiction but cannot extinguish constitutional judicial review.
- **Claim -> evidence -> analysis -> qualification:** Articles 323A/323B contemplated exclusion, but L. Chandra Kumar (1997) restored Articles 226/227 review.
- **Claim -> evidence -> analysis -> qualification:** Madras Bar Association (2014) protected judicial functions from executive-dominated replacement.
- **Claim -> evidence -> analysis -> qualification:** Tribunals supplement rather than supplant constitutional courts.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 2 - 2019 GS-II Q2

Question: The Central Administrative Tribunal exercises independent judicial authority. Explain.

Directive: Explain · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: The Central Administrative Tribunal exercises independent judicial authority. The answer must respond to the directive **Explain** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** CAT is a statutory adjudicatory forum under the Administrative Tribunals Act 1985.
- **Claim -> evidence -> analysis -> qualification:** It decides covered service disputes through reasoned orders and natural justice.

- **Claim -> evidence -> analysis -> qualification:** Its independence is functional but structurally qualified by appointments, tenure and executive support.
- **Claim -> evidence -> analysis -> qualification:** High Court review after L. Chandra Kumar (1997) prevents a self-contained parallel judiciary.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Supporting routed PYQ 3 - 2024 GS-II Q2

Question: Explain and distinguish Lok Adalats and Arbitration Tribunals.

Directive: Explain and distinguish · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Explain and distinguish Lok Adalats and Arbitration Tribunals. The answer must respond to the directive

Explain and distinguish rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Lok Adalat is statutory and conciliatory; arbitration is consensual and adjudicatory.
- **Claim -> evidence -> analysis -> qualification:** The Legal Services Authorities Act 1987 and Arbitration and Conciliation Act 1996 supply different legal bases.
- **Claim -> evidence -> analysis -> qualification:** Lok Adalat awards rest on settlement; arbitral awards face limited Section 34 challenge.
- **Claim -> evidence -> analysis -> qualification:** Neither institution is an administrative tribunal under Article 323A.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 4 - 2025 GS-II Q2

Question: Comment on the need for administrative tribunals compared with courts and assess the 2021 rationalisation reforms.

Directive: Comment and assess · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Comment on the need for administrative tribunals compared with courts and assess the 2021 rationalisation reforms. The answer must respond to the directive **Comment and assess** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Expertise, flexible procedure and high-volume specialisation justify tribunals.
- **Claim -> evidence -> analysis -> qualification:** Rationalisation can remove duplication but may transfer specialised work to burdened courts.
- **Claim -> evidence -> analysis -> qualification:** Independent selection, secure tenure, benches and infrastructure determine actual speed.
- **Claim -> evidence -> analysis -> qualification:** The post-2025 constitutional position must be stated with a dated service-condition caveat.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Original Solved Mains Practice

M1. Distinguish Articles 323A and 323B.

Directive: Distinguish · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Distinguish Articles 323A and 323B. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Article 323B - claim -> evidence -> analysis -> qualification:** Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence. Subject, law-maker and scope distinguish the two Articles.
- **Administrative Tribunals Act 1985 - claim -> evidence -> analysis -> qualification:** The 1985 Act establishes CAT and enables SAT arrangements for covered service matters. Statutory jurisdiction depends on the Act's coverage and exclusions.
- **Cat Jurisdiction - claim -> evidence -> analysis -> qualification:** CAT hears covered recruitment and service disputes, not every public-law or criminal matter. Employer, post and statutory notification matter.
- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M2. Explain CAT's jurisdiction, procedure and review chain.

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Explain CAT's jurisdiction, procedure and review chain. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Administrative Tribunals Act 1985 - claim -> evidence -> analysis -> qualification:** The 1985 Act establishes CAT and enables SAT arrangements for covered service matters. Statutory jurisdiction depends on the Act's coverage and exclusions.
- **Cat Jurisdiction - claim -> evidence -> analysis -> qualification:** CAT hears covered recruitment and service disputes, not every public-law or criminal matter. Employer, post and statutory notification matter.
- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M3. Why do tribunals not replace constitutional courts?

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Why do tribunals not replace constitutional courts? The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Cat Jurisdiction - claim -> evidence -> analysis -> qualification:** CAT hears covered recruitment and service disputes, not every public-law or criminal matter. Employer, post and statutory notification matter.
- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M4. Assess administrative tribunals as instruments of expertise, speed and access.

Directive: Assess · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Assess administrative tribunals as instruments of expertise, speed and access. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M5. Examine executive control, vacancies and short tenure as threats to tribunal independence.

Directive: Examine · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Examine executive control, vacancies and short tenure as threats to tribunal independence. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M6. Evaluate tribunal rationalisation and abolition as pendency reforms.

Directive: Evaluate · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Evaluate tribunal rationalisation and abolition as pendency reforms. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.

- **Roger Mathew - claim -> evidence -> analysis -> qualification:** Roger Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence. The decision belongs to a continuing line rather than a single final settlement.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M7. Trace the constitutional evolution of tribunal judicial review from the 42nd Amendment to L. Chandra Kumar and later cases.

Directive: Trace and analyse · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Trace the constitutional evolution of tribunal judicial review from the 42nd Amendment to L. Chandra Kumar and later cases. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.
- **Roger Mathew - claim -> evidence -> analysis -> qualification:** Roger Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence. The decision belongs to a continuing line rather than a single final settlement.
- **Cat Comparison - claim -> evidence -> analysis -> qualification:** CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review. Institutional taxonomy prevents close-option errors.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M8. Propose a tribunal reform architecture consistent with independence, specialisation, access and constitutional review.

Directive: Propose · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Propose a tribunal reform architecture consistent with independence, specialisation, access and constitutional review. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.

- **Rojer Mathew - claim -> evidence -> analysis -> qualification:** Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence. The decision belongs to a continuing line rather than a single final settlement.
- **Cat Comparison - claim -> evidence -> analysis -> qualification:** CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review. Institutional taxonomy prevents close-option errors.
- **Article 323A - claim -> evidence -> analysis -> qualification:** Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament. The Article is enabling and subject to the judicial-review basic structure.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Polity | **Tier:** Advanced | **GS Paper:** GS-II **Grounded in:** Laxmikanth's Tribunals chapter (direct check of the local Sixth Revised Edition PDF); Articles 323-A and 323-B; Administrative Tribunals Act, 1985; *S.P. Sampath Kumar* (1987); *L. Chandra Kumar* (1997) (1997); *Madras Bar Association* tribunal cases; Tribunal Reforms Act, 2021; verified 2025 GS-II Q2. **FACT:** = official/case-grounded | **ANALYSIS:** = analysis | **CURRENT:** = current/PYQ anchor. *Companion:* basic/Administrative-Tribunals.md.

1. Constitutional design

Axis	Article 323-A	Article 323-B
Field	Public-service recruitment and service conditions	Enumerated fields including taxation, labour, land reform and elections
Competent legislature	Parliament	Parliament or State Legislature within legislative competence
Design implication	Specialised administrative-justice system	Sector-specific tribunalisation

Parliament enacted the Administrative Tribunals Act, 1985 under Article 323-A. CAT is a specialised adjudicatory forum, not an executive department and not a constitutional court.

2. Need compared with ordinary courts

TECHNICAL / HIGH-VOLUME DISPUTE

```

|
+--> specialist members and domain familiarity
+--> simpler procedure and lower formality
+--> potentially faster disposal
|
v

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RISKS

vacancies + executive dependence + fragmented appeals
+ weak infrastructure + transfer of delay

ANALYSIS: The case for tribunals is functional, not a claim that ordinary courts are dispensable. A tribunal succeeds only if specialisation and speed are matched by independence, stable tenure, adequate benches and constitutional-court supervision.

3. Judicial-review settlement

- **FACT:** *S.P. Sampath Kumar* initially accepted tribunal substitution if the alternative mechanism was effective.
- **FACT:** *L. Chandra Kumar* (1997) held that exclusion of High Court/Supreme Court judicial review under Articles 226/227 and 32 was unconstitutional because judicial review is part of the basic structure.

- **FACT:** Tribunals may decide constitutional questions in the first instance, but their decisions are subject to scrutiny by a Division Bench of the territorial High Court.
- **ANALYSIS:** This protects constitutional supervision but adds another tier; speed therefore depends on sound first-instance adjudication, not jurisdiction stripping.

4. Tribunal Reforms Act, 2021

- **FACT:** The Act rationalised the tribunal landscape by abolishing specified appellate bodies and transferring their work to existing courts or other forums.
- **FACT:** It established a common service-condition framework for covered tribunal chairpersons and members.
- **FACT:** The Supreme Court's *Madras Bar Association* line insists that tribunal appointments, tenure and conditions must preserve judicial independence and separation of powers.
- **CURRENT: FACT:** On **19 Nov 2025**, the Supreme Court in **2025 INSC 1330** struck down the re-enacted provisions covering the fifty-year minimum age, two-name recommendation panel and merely preferable appointment timeline, four-year tenure, and impugned allowance framework. It made *MBA (IV)* and *MBA (V)* the controlling standards and directed a National Tribunals Commission within four months.
- **CURRENT: FACT:** On **9 Mar 2026**, the Court made a separate continuity arrangement extending specified serving incumbents until **8 Sep 2026** or the applicable maximum age, whichever was earlier, because non-extension could make tribunals defunct. The order did not revive the provisions invalidated in November 2025.

Claimed gain	Counter-risk	Surgical reform
Fewer overlapping bodies	Specialised work shifted to burdened courts	Dedicated rosters and transferred staff/records
Uniform appointment rules	Executive dominance or delayed selection	Independent search-selection process and binding timelines
Administrative economy	Vacancies and weak regional access	Bench planning, budgets and public vacancy dashboards
Faster finality	An additional High Court-review stage remains	Better first-instance quality; do not remove judicial review

5. Verified PYQ application

- **FACT: 2025 GS-II Q2 (10 marks, 150 words):** “Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021.”
- **Thesis:** Tribunals remain justified by specialisation, accessibility and potential speed, but the 2021 rationalisation is beneficial only where consolidation is accompanied by capacity and independence; otherwise it transfers rather than resolves delay.
- **Structure:** need -> constitutional limits -> 2021 rationalisation -> gains and displacement costs -> independent appointments, tenure, benches and infrastructure.

6. Prelims traps

- **WRONG:** Only Parliament may legislate under both Articles. -> States may legislate within their competence under Article 323-B; Article 323-A is Parliament-only.
- **WRONG:** CAT is outside all High Court supervision. -> *L. Chandra Kumar (1997)* preserves review under Articles 226/227.
- **WRONG:** Tribunalisation permits Parliament to remove the basic structure. -> Constituent and legislative power remain subject to basic-structure judicial review.
- **WRONG:** The March 2026 extensions revived the 2021 four-year-tenure framework. -> They were

temporary incumbent-specific continuity measures; *MBA (IV)/(V)* remained controlling after the November 2025 judgment.

7. Study links

- advanced/18_Supreme-Court.md - judicial review and basic structure.
- advanced/21_High-Court-and-Subordinate-Courts.md - Articles 226/227 and court burden.
- Governance/advanced/11_Regulatory-Governance-and-Independent-Regulators.md - independence/accountability design for specialist bodies.

CONSOLIDATED REGISTER NOTES

Administrative Tribunals: Rapid Constitutional Recall

- **Current-control rule:** Articles 323A/323B, the Administrative Tribunals Act 1985, CAT material and the Supreme Court's tribunal-independence line through the judgment reported as 2025 INSC 1330 were rechecked on 25 August 2026. Appointment, tenure and service-condition statements carry an exact dated caveat because the common tribunal framework remains litigation- and implementation-sensitive.
- **Factual caveat:** Tribunals supplement specialist adjudication; they do not replace High Courts or the Supreme Court. *L. Chandra Kumar* preserves Articles 226/227 review. CAT, SATs, other Article 323B tribunals, commissions, courts and Lok Adalats must not be collapsed into one institutional category.

Snapshot

- Feature Article 323-A Article 323-B
- Subject Recruitment and service conditions of public servants Specified fields such as tax, foreign exchange, labour, land reform and elections
- Law-maker Parliament only Parliament or a State Legislature within its competence

Core architecture

- expertise + flexible procedure
- tribunal decisions remain reviewable
- by a High Court Division Bench

Tribunal Reforms Act, 2021

- [FACT] The 2021 rationalisation abolished specified appellate bodies and transferred their
- functions to existing judicial or administrative forums.
- [FACT] It also prescribed a common framework for qualifications, appointment, tenure and

Verified PYQ application

- [FACT] 2025 GS-II Q2 (10 marks, 150 words): "Comment on the need of administrative
- tribunals as compared to the court system. Assess the impact of the recent tribunal
- reforms through rationalization of tribunals made in 2021."

Traps

- Wrong: Tribunal decisions are immune from High Court review. - They are reviewable under
- Articles 226/227 after *L. Chandra Kumar*.
- Wrong: Articles 323-A and 323-B are identical. - They differ in subject, law-maker and scope.

6. Answer architecture (10/15/20-mark support)

6.1 Demand and directive map

- Demand family Directive signals Answer spine
- Tribunals vs ordinary courts "curtail jurisdiction", How far, Discuss supplement-not-supplant -> 323A/B exclusion -> *L. Chandra Kumar* -> NTT/ R. Gandhi -> verdict

- CAT's adjudicatory independence "independent judicial authority", Explain AT Act 1985 -> independence markers -> executive-influence limit -> HC review -> verdict

6.2 Qualified thesis options

- Tribunals are a functional supplement to the courts, not a substitute for them: they may take the first bite of a dispute, but the High Court's supervisory jurisdiction is a basic-structure floor they cannot displace.
- The promise of tribunals - expertise, speed and access - is delivered only when their independence is secured; the recurring constitutional litigation since 2010 shows that appointment and tenure design, not jurisdiction, is the real battleground.
- Lok Adalats and arbitration answer two different justice deficits - one of access for the poor, one of autonomy for commerce - so they are complementary limbs of an alternative-dispute-resolution architecture, not rivals.

6.3 Mark-scaled structures

- Marks Architecture Evidence load
- 10 Thesis -> two anchors (Article/Act + case) -> one qualification -> verdict 3 units
- 15 Thesis -> constitutional design -> case-law settlement -> counter-risk (independence/burden) -> graded verdict 5-6 units

6.4 Bank A - Constitutional design and the judicial-review settlement

6.5 Bank B - Rationalisation, reform litigation and current status

6.6 Bank C - Lok Adalats versus arbitration (the ADR distinction)

- Source Statutory - LSA Act 1987 (Art 39A) Contractual - A&C Act 1996
- Nature Court-annexed conciliation/compromise Private adjudication
- Consent Referral or consent; PLA decides merits for public utilities Consent via arbitration agreement

6.7 Mechanism, institutional incentives and consequences

- Why tribunals were created: to move technical, high-volume disputes to expert members under simpler procedure, easing the constitutional courts.
- Consequence of the L. Chandra Kumar tier: [FACT] tribunal -> HC Division Bench -> SC preserves supervision but can lengthen the chain, so first-instance quality, not jurisdiction-stripping, is the real efficiency lever.
- National Tribunals Commission logic: [LIMIT] an independent umbrella body for appointments, infrastructure and oversight is the standing judicial prescription for breaking the appoint-and-strike-down cycle.

6.8 Criticism, counter-argument, variation and implementation constraints

- Curtailment critique: tribunals reduce direct access to the HC and fragment appeals; counter - L. Chandra Kumar preserves supervisory review, so the curtailment is of original, not supervisory, jurisdiction.
- Rationalisation critique: [LIMIT] abolishing appellate tribunals can merely shift pendency to already-burdened HCs/commercial courts unless benches, staff and records follow.
- Independence critique: the recurring strike-downs (R. Gandhi -> Rojer Mathew -> MBA (IV)/(V) -> 2025 INSC 1330) show a pattern of executive-tilted rules being re-enacted; counter - persistent judicial correction is itself the safeguard working.

6.9 Verdict scaffolds

- Tribunals-vs-courts verdict: "Tribunals curtail the ordinary courts' first-instance reach but not their constitutional supervision; L. Chandra Kumar makes judicial review a floor no tribunal statute can sink below."
- Rationalisation verdict: "The 2021 rationalisation is sound in aim and suspect in execution; it delivers only where consolidation is matched by independent appointments and real capacity, as the 2025 judgment insists."
- ADR verdict: "Lok Adalats and arbitration solve different problems - access for the citizen, autonomy for commerce - and India's justice system needs both, not a choice between them."

6.10 Prelims close-option distinctions

- Confusion pair Correct discrimination

- Art 323A vs 323B 323A = service matters, Parliament only ; 323B = enumerated fields, Parliament or State - both by the 42nd Amendment 1976
- Sampath Kumar vs L. Chandra Kumar 1987 accepted substitution if effective ; 1997 held HC review is basic structure and exclusion unconstitutional

6.11 Factual-risk and current-status controls

- [FACT] Art 323A/323B were inserted by the 42nd Amendment (1976) ; the AT Act is 1985 , the LSA Act is 1987 , the A&C Act is 1996 - keep the years exact.
- [FACT] L. Chandra Kumar (1997) preserved HC Art 226/227 review ; it did not abolish tribunals or bar CAT from deciding constitutional questions at first instance.
- [LIMIT]/[CURRENT] Do not state tribunal tenure, minimum age, pecuniary limits, vacancy counts or the Money-Bill reference as settled - mark [CURRENT] and re-verify; a struck-down provision or a Bill/Ordinance is not the law.

Articles 323A and 323B: exact constitutional distinction

- Axis Article 323A Article 323B
- subject recruitment and service conditions of public servants specified fields such as tax, labour, land reforms and elections
- law-maker Parliament appropriate legislature within competence

CAT process, exclusions and judicial-review chain

- covered recruitment/service matter - Original Application before competent CAT bench
- notice, pleadings, records, hearing - reasoned tribunal order
- High Court Division Bench under Articles 226/227

Final Answer Spine

- Define the institution or design in plain and technical language.
- State the exact constitutional, statutory, order-based or policy source.
- Explain the operating mechanism with named Indian evidence.
- Separate settled law from recommendation, policy, pending litigation and dated status.
- Present the strongest democratic, federal, independence or accountability counterpoint.
- Conclude with a calibrated reform or comparative verdict.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/9: Tribunalisation: specialist justice under constitutional supervision

ROOT QUESTION

Can specialist adjudication improve access and speed without creating executive-controlled courts?

RATIONALE

expertise | flexible procedure | high-volume disposal | geographical access | lower cost.

CONSTITUTIONAL SOURCE

42nd Amendment 1976 -> Part XIVA -> Articles 323A and 323B.

STATUTORY SOURCE

Administrative Tribunals Act 1985 -> CAT and enabled SAT arrangements.

NON-NEGOTIABLE FLOOR

judicial independence + natural justice + reasoned order
+ High Court/Supreme Court constitutional review.

ASCII MASTER FLOW - PANEL 2/9: Articles 323A and 323B compared

ARTICLE 323A

public-service recruitment and service conditions.
law-maker: Parliament.
administrative-tribunal design.

ARTICLE 323B

listed subjects: tax, labour, land reform, elections and others in text.
law-maker: appropriate legislature within competence.
subject-specific tribunal/hierarchy.

COMMON HISTORY

text allowed court exclusion.

CURRENT LAW

L. Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.

TRAP

enabling Article != automatic creation of a tribunal.

ASCII MASTER FLOW - PANEL 3/9: CAT and SAT institutional architecture

CAT

Principal Bench + notified benches;
Chairperson + Judicial Members + Administrative Members under current law.

JURISDICTION

covered Union recruitment/service matters and notified bodies.

SAT

State service tribunal may exist through statutory arrangement;
States vary and some SATs have been abolished or not constituted.

EXCLUSIONS

follow exact Administrative Tribunals Act text and notifications;
not every public employee or constitutional office enters CAT.

CONTROL

appointments, tenure and service conditions must be stated with the 25 August 2026 caveat.

ASCII MASTER FLOW - PANEL 4/9: Application, procedure, powers and contempt

PROCESS

jurisdiction check -> Original Application -> notice/reply/record
-> interim issue -> hearing -> reasoned final order.

PROCEDURE

natural justice | flexible procedure | not rigidly bound by CPC.

POWERS

summons | documents | affidavits | commissions | review/other statutory powers.

CONTEMPT

statutory power subject to governing law and constitutional review.

LIMIT

procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.

ASCII MASTER FLOW - PANEL 5/9: L. Chandra Kumar (1997) and the correct review chain

ORIGINAL CONSTITUTIONAL DESIGN

tribunal as substitute first-instance forum + exclusion clauses.

L. Chandra Kumar (1997)

High Court Articles 226/227 and Supreme Court Article 32 review are basic structure;
exclusion clauses invalid;
tribunals may test vires of subordinate legislation and statutes except parent legislation limits.

OPERATIVE CHAIN

tribunal order -> territorial High Court Division Bench -> Supreme Court constitutional route.

TRAP

routine direct appeal from CAT to Supreme Court
is not the ordinary substitute for High Court review.

ASCII MASTER FLOW - PANEL 6/9: Tribunal-independence doctrine across five decisions

Union of India v. R. Gandhi (2010)
transferred judicial work requires equivalent independence, qualifications and safeguards.

Madras Bar Association NTT (2014)
National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated.

Madras Bar Association IV (2020)
Tribunal Rules scrutinised; selection and tenure safeguards reinforced.

Madras Bar Association V (2021)
short tenure, age and executive override defects invalidated in the 2021 ordinance/Act line.

Roger Mathew v. South Indian Bank (2019)
Finance Act/rules route and tribunal independence examined.

Madras Bar Association tribunal reforms (2025)
reported 2025 INSC 1330 continues the constitutional control and directs institutional reform.

LIMIT
service-condition detail remains date-sensitive; doctrine is stable, implementation is not.

ASCII MASTER FLOW - PANEL 7/9: Rationalisation, abolition and access-to-justice consequences

2021 RATIONALISATION
abolish specified appellate bodies -> transfer functions to courts/other forums
-> common service framework.

POSSIBLE GAIN
less fragmentation | fewer duplicative bodies | clearer appeal path.

POSSIBLE COST
specialised expertise lost | burden shifted to High Courts
| vacancies and transition delay | access becomes geographically harder.

SAT VARIATION
abolition/merger differs by State and statute; no uniform live SAT map should be invented.

TEST
pendency outcome + bench capacity + independence + user cost + transitional clarity.

ASCII MASTER FLOW - PANEL 8/9: CAT, courts, commissions and ADR distinguished

CAT
statutory service adjudication -> binding reasoned order -> High Court review.

HIGH COURT
constitutional court -> writ/supervisory jurisdiction -> broad public-law control.

COMMISSION
investigation/advice/report unless statute grants adjudicatory power.

LOK ADALAT
statutory settlement/conciliation -> award based on compromise.

ARBITRATION
consensual private adjudication -> limited statutory challenge.

DEPARTMENTAL APPEAL
administrative reconsideration -> not independent judicial adjudication.

TRAP
specialised does not automatically mean tribunal; binding does not automatically mean court.

ASCII MASTER FLOW - PANEL 9/9: UPSC synthesis and reform architecture

PRELIMS FIREWALL
323A service != 323B listed subjects | enabling != creating
| CAT != constitutional court | flexible != arbitrary
| first instance != final constitutional word | rationalisation != pendency cure.

MAINS SPINE
rationale -> constitutional/statutory source -> structure/jurisdiction
-> procedure/powers -> L. Chandra Kumar (1997) chain
-> independence cases -> rationalisation/access -> reform.

REFORM
independent appointments body | secure adequate tenure | transparent vacancies
| administrative autonomy | national data/standards | regional benches
| coherent appeals | periodic performance review without decisional interference.

VERDICT
tribunals are justified only as independent, accessible specialist courts
under constitutional supervision.